



POLICE DEPARTMENT CITY OF NEW YORK

August 16, 2017

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Julio Jimenez
Tax Registry No. 948358
42 Precinct
Disciplinary Case No. 2016-16436

Charges and Specifications:

1. Said Police Officer Julio Jimenez, while assigned to the 42nd Precinct, on or about May 27, 2016 and through May 31, 2016, having become aware he was the subject of an Order of Protection, did fail and neglect to notify his Commanding Officer or the Internal Affairs Bureau as required.
P.G. 206-19, Page 1, Paragraph 1 – DISCIPLINARY MATTERS
ORDERS OF PROTECTION SERVED ON MEMBERS OF THE SERVICE
2. Said Police Officer Julio Jimenez, while assigned to the 42nd Precinct, on or about May 27, 2016, did wrongfully engage in conduct prejudicial to the good order, efficiency and discipline of the Department to wit: having become aware he was the subject of an order of protection failed to appear at the office of the New York City Sheriff's Department for service of said order as requested by Deputy Sheriff Rebeca Davila.
P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS
PUBLIC CONTACT – PROHIBITED CONDUCT

Appearances:

For the Department: Jessica Brenes, Esq.
Department Advocate's Office
One Police Plaza, 4th Floor
New York, NY 10038

For Respondent: Michael Martinez, Esq.
Worth, Longworth & London LLP
111 John Street, Suite 640
New York, NY 10038

Hearing Date:
July 17, 2017

Decision:

Guilty

Trial Commissioner:

ADCT David S. Weisel

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before the Court on July 17, 2017. Respondent, through his counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

After reviewing the evidence presented at the hearing, assessing the credibility of the witnesses, and Respondent having pleaded Guilty to all charges, the Court finds Respondent Guilty of the charged misconduct.

FINDINGS AND ANALYSIS

Respondent was assigned to the 42 Precinct. He testified that he formerly was [REDACTED] Person A. They had two minor children together, of whom they shared custody [REDACTED] [REDACTED] In May 2016, Respondent was dating another woman, whom he has since married. Respondent and his [REDACTED] wife also have a child together (Tr. 10-12).

Respondent testified that the custodial arrangement was for him to have his children from the Person A [REDACTED] on his days off and on weekends. He asserted that Person A did not like this and "was doing everything she could to not give me the kids." She often would make claims to Family Court so as to get orders of protection filed against him and take the children away (Tr. 11-15).

May 26, 2017, was the Friday of Memorial Day weekend. Respondent testified that he had plans to go with his [REDACTED] wife and all their children to her parents' home on Long Island.

That day, however, he received a phone call while on duty from the New York City Sheriff's Office. Deputy Sheriff Rebecca Davila told Respondent that Person A had gotten an order of protection against him for allegedly assaulting her (see Dept. Ex. 1, order of protection). The deputy told Respondent that he needed to come to the Sheriff's Office to be served with the order. Davila also told Respondent that he needed to bring the two children with him, because the order supposedly required him to stay away from the children. Respondent testified that during the services of previous orders, he had to turn over the children (Tr. 14-17, 20, 27-29).

Respondent fully admitted that he did not want to ruin his weekend plans by not having his children with him. He asked Davila if the matter could wait until after the weekend. She told him that she would have to check with a supervisor but would call him back. Respondent admitted that he went to Long Island with his children and [REDACTED] wife later that day, without communicating further with Davila. He conceded that "we were leaving when she called me" back and he did not take the call. He claimed that he did not immediately recognize the number. He "believe[d]" that he called the office back but did not reach anyone. He asserted that Davila did not deny him permission to go with the children on the Memorial Day weekend, but merely "wanted permission from her boss." Because he did not speak to Davila further, he thought he had permission (Tr. 17-19, 23-28).

When Respondent returned to work after the weekend, he claimed, it was his intention to go to the Sheriff's Office and pick up the order. He was heading there from the outdoor gun range when he was informed by his integrity control officer that Davila was at the 42 Precinct stationhouse to serve him. Respondent admitted that he had not informed his command that he was on his way to the Sheriff's Office, but maintained that it was only two blocks from his command in any event. Respondent agreed that he eventually was served with the order of

protection on Tuesday, May 31, 2016. Family Court dismissed the matter about a year later (Tr. 19-22, 27-28, 31-34).

As it turned out, the order of protection did not require Respondent to turn over the children or entail any change in custody or visitation. The only mention of the children was that it ordered Respondent to stay away from their school, subject to Family Court orders of visitation.

Respondent pleaded Guilty to the two specifications here. He admitted that he should have informed the Internal Affairs Bureau when he got the original call from the Sheriff's Office (Specification No. 1). Instead, he only talked to his delegate about it. Respondent also stated that he should have gone to the Sheriff's Office that day to be served with the order (Specification No. 2) (Tr. 22-24).

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on July 14, 2009. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Department recommended a penalty of the forfeiture of 15 vacation days. In the tribunal's view this is excessive even by the cases cited by the Advocate. For example, in *Case No.* [REDACTED], a detective with no prior history negotiated a penalty of 30 vacation days for wrongfully conducting personal business while on duty, using a Department vehicle to conduct personal business, leaving the confines of his assigned command while on duty without permission or authority of a supervisor, and failing to notify the Department after becoming aware that he was the subject of a Family Court order of protection. That detective drove to the home of his [REDACTED] while on duty with two other detectives to serve her with court papers, but as a result, his [REDACTED] obtained an order against him.

The Department also cited *Case No.* [REDACTED]¹ There, a police officer with a previous record for improperly adjudicating summonses negotiated a penalty of 15 vacation days for failing to notify his commanding officer that an order of protection had been filed against him, prepare an Acknowledgement of Responsibilities Concerning Court Order Limiting Firearms Possession (as required under Patrol Guide § 206-20 in such situations), and secure his firearm at the precinct at the end of each tour.

These cited cases involve more serious misconduct than engaged in by Respondent here. Other cases reveal lesser penalties. For example, in *Case No.* [REDACTED] a 21-year detective with a long record of distinguished service forfeited 10 days for threatening his [REDACTED] and neglecting to inform his commanding officer that he had been served an order of protection. During a verbal altercation, the detective threatened to have his [REDACTED] arrested, to have the children taken away, and to slash the car tires in order to prevent her from leaving.

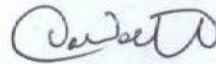
That case cited another, *Case No.* [REDACTED], which involved only the failure to report an order of protection. That officer had some disciplinary history involving her [REDACTED] who was the protected party in the order in question. The Police Commissioner, however, noting the officer's "otherwise good service record," reduced the recommended penalty from 20 to 10 vacation days.

Respondent also has a disciplinary history regarding Person A see Confidential Mem., *infra*. He too has an otherwise good service record with the Department. Moreover, in light of the fact that it is primarily the serving party's obligation to serve papers, the second specification of failing to go to the Sheriff's Office to pick up the order of protection should not result in a

¹ The Advocate cited the facts of this case as belonging to *Case No.* [REDACTED] That case also is relevant and is discussed *infra*.

higher penalty. Accordingly, the Court recommends that Respondent be penalized with the loss of 10 vacation days.

Respectfully submitted,

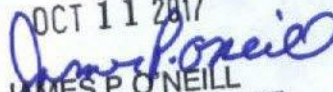


David S. Weisel

Assistant Deputy Commissioner Trials

APPROVED

OCT 11 2017


JAMES P. O'NEILL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials

To: Police Commissioner

Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER JULIO JIMENEZ
TAX REGISTRY NO. 948358
DISCIPLINARY CASE NO. 2016-16436

Respondent's last three annual performance evaluations were as follows: in 2015, he received an overall rating of 3.5 "Highly Competent/Competent;" in 2014, he received an overall rating of 3.0 "Competent;" and in 2013, he received an overall rating of 3.5 "Highly Competent/Competent." He has been awarded one medal for Excellent Police Duty. [REDACTED]

[REDACTED]

From September 10, 2014, to May 12, 2016, Respondent was placed on Level 2 Disciplinary Monitoring for having received Charges and Specifications in Case No. 2014-11908. In that case, Respondent forfeited 30 pre-trial suspension days, served from June 1, 2014, to July 1, 2014, for (i) moving his car forward while his pregnant [REDACTED] was leaning into the rear of the vehicle, causing her to fall and suffer abrasions to both knees and her right thigh as well as a contusion and pain to the back of her head, and (ii) leaving the scene after causing an injury to his [REDACTED].

Respondent was again placed on disciplinary monitoring on January 4, 2017, after having received the Charges and Specifications in the instant case. That monitoring remains ongoing. The woman involved in the instant case is Respondent's [REDACTED] and was the same woman involved in his prior disciplinary case.

David S. Weisel
Assistant Deputy Commissioner Trials